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A new sanction for violation of GDPR

The National Supervisory Authority has completed in June 2022 an investigation into the operator SC Wabag Water Services SRL and found a violation of the provisions of Article 5 paragraph (1) letter a) and paragraph (2) and Article 6 of the General Data Protection Regulation.

The operator SC Wabag Water Services SRL was sanctioned with a fine of 4,945.40 lei (equivalent to the amount of 1000 EURO).

The investigation was initiated following the receipt of complaints from a petitioner who claimed that her personal data had been used by her own employer (SC Wabag Water Services SRL) without her consent, for the purpose of registering and scheduling her on the national vaccination platform for the Covid-19 vaccine.

During the investigation, it was established that the operator SC Wabag Water Services SRL used the personal data of the petitioner (an employee of the operator) for the purpose of registering and scheduling her on the national scheduling platform for the Covid-19 vaccination in 2021, without providing evidence of the existence of the petitioner's consent and without the existence of any other situation in which consent is not required, thus violating the provisions of Article 5 paragraph (1) letter a) and paragraph (2) and Article 6 of Regulation (EU) 2016/679.

In this context, we emphasize that Article 5 of Regulation (EU) 2016/679 establishes a series of principles that must be respected in the processing of data. Among these is the principle regarding the processing of data in a lawful, fair, and transparent manner with respect to the data subject ("lawfulness, fairness, and transparency"), as provided in Article 5 paragraph (1) letter a) of the regulation.

At the same time, Article 5 paragraph (2) of Regulation (EU) 2016/679 states that the operator is responsible for ensuring compliance with the principles of processing and can demonstrate this compliance (the principle of accountability).

Legal and Communication Directorate
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